

Nagesh Pati Tripathi v. State of U.P.

Allahabad High Court · Division Bench · 13 February 2024 · 2024:AHC:24679-DB · WRIT - C No. - 1046 of 2024 · **Writ disposed; petitioner relegated to Clause 6.5; demand stayed**

HEADNOTE

A consumer who disputes the quantum of electricity bills and challenges a Tehsildar recovery notice without first invoking Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005, is relegated to that remedy. The writ is disposed of with liberty to approach the licensee under Clause 6.5 within two weeks; the authority must decide after hearing within three weeks, and the demand remains unenforced until then.

FACTUAL SUMMARY

Nagesh Pati Tripathi filed a writ petition in the Allahabad High Court challenging a recovery notice dated 1 June 2023, as modified on 23 November 2023, issued by the Tehsildar, Gyanpur, District Bhadohi. He disputed the quantum of electricity bills raised by the distribution licensee (respondents 5 and 6). Counsel for the petitioner and for the licensee were heard. The record showed that the petitioner had not invoked the billing-objection remedy under the Uttar Pradesh Electricity Supply Code, 2005, before approaching the High Court.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing objection as alternate remedy

HOLDING

Where the consumer disputes the quantum of bills and has not invoked Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005, the writ court relegates him to that remedy. The petitioner may file proceedings under Clause 6.5 within two weeks; the respondents must pass an appropriate order in accordance with law within three weeks thereafter after hearing him. Until those proceedings are decided, the recovery demand shall not be enforced. ¶ 4-7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — QUANTUM OF THE DISPUTED ELECTRICITY BILLS AND VALIDITY OF THE RECOVERY NOTICES

Merits of the billing dispute were not examined; the petitioner was relegated to Clause 6.5. ¶ 3-5